

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X SUMMONS

ADAM ELSAYED,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

SERGEANT JONATHAN BOGARD, POLICE OFFICER
EUGENE OTTON, POLICE OFFICER VAHAGN
KRMOYAN,

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 15, 2019

DEFENDANTS' ADDRESS:

SERGEANT JONATHAN BOGARD
78th Precinct
65 6th Avenue, Brooklyn, NY 11217POLICE OFFICER EUGENE OTTON
78th Precinct
65th 6th Avenue, Brooklyn, NY 11217POLICE OFFICER VAHAGN
KRMOYAN
78th Precinct
65th 6th Avenue, Brooklyn NY 11217

PLAINTIFF'S ATTORNEY:

Masai I. Lord, Esq.
Attorney for Plaintiff
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New York, NY 10279
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
ADAM ELSAYED,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINTSERGEANT JONATHAN BOGARD, POLICE OFFICER
EUGENE OTTON, POLICE OFFICER VAHAGN
KRMOYANDefendants.

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Plaintiff, ADAM ELSAYED, by his attorney, MASAI I. LORD Esq., alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff ADAM ELSAYED brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the Defendants BOGARD, OTTON, and KRMOYAN were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.

5. That the defendants have not adjusted, settled or paid the same.

6. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

7. That all conditions and requirements precedent to the commencement of this action have been complied with.

8. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

9. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

10. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

11. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

12. On May 20, 2017, Mr. Elsayed was driving to his girlfriend's house from dinner at a restaurant. He drove 22 blocks with no incident or violation of the Vehicle and Traffic Laws. At or about 12:10 am he came upon a DWI checkpoint.

13. Prior to this checkpoint, Mr. Elsayed committed no traffic infractions or violations of the Vehicle and Traffic Law.

14. Mr. Elsayed was stopped pursuant to the checkpoint. The officers conducting the checkpoint alleged that they stopped every other vehicle.

15. When stopping Mr. Elsayed, defendants falsely claimed that Mr. Elsayed speech was incoherent.

16. When stopping Mr. Elsayed, defendants falsely claimed that Mr. Elsayed was swaying when he was told to exit the vehicle.

17. When stopping Mr. Elsayed, defendants falsely claimed that Mr. Elsayed failed the coordination tests at the scene.

18. The defendants searched Mr. Elsayed's vehicle and did not find any marihuana.

19. Finally, the officers falsely stated that Mr. Elsayed told the officers that he had smoke marihuana 45 minutes earlier.

20. The officers conducted a SFST using the Drager machine test at the scene, which has been deemed unreliable for given false positives in other states in the country.

21. Mr. Elsayed was taken to the IDTU, where he blew a 00.00% on the intoxlyzer 5000.

22. Mr. Elsayed was given three coordination tests at the IDTU precinct. He passed all of the tests. This objectively indicted to the IDTU officer that his ability to drive was not impaired by marihuana.

23. Despite this information, the defendants proceeded to commence a prosecution against Mr. Elsayed with malice and a lack of probable cause.

24. Plaintiff was incarcerated for approximately 24 hours before being arraigned and he was released on his own recognizance.

25. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

26. These charges against plaintiff were based entirely on the false allegations and fabrications by DEFENDANTS BOGARD, OTTON, and KRMOYAN.

27. All criminal charges against plaintiff relating to this arrest were dismissed on May 10, 2018 on the motion of the Kings County District Attorney's Office after they declared they could not prove the case beyond a reasonable doubt.

28. Plaintiff was acting lawfully when he was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

29. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

30. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

31. As a result of the defendants' conduct, plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

32. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

33. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

34. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

35. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

36. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER 42 U.S.C 1983**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

39. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

40. DEFENDANTS commenced this criminal action out of malice.

41. The criminal action against Plaintiff has terminated in his favor.

42. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

43. That Plaintiff was conscious of the confinement.

44. Plaintiff made 9 court appearances before all charges were dismissed.

45. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

46. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

47. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

48. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

49. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

50. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

51. The misconduct by DEFENDANTS BOGARD, OTTON, and KRMOYAN described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

52. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

53. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

54. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to DEFENDANTS BOGARD, OTTON, KRMOYAN, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

55. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

56. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

57. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE PROCESS OF
LAW UNDER 42 U.S.C 1983**

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

59. DEFENDANTS falsely informed the Kings County District Attorney's Office ("KCDA"), and the KCDA relied upon that information in charging Mr. Williams, that Mr. Elsayed's speech was incoherent, that he was swaying, that his eyes were red, that he failed the

coordination tests at the scene, that he informed the officers that he smoked marihuana 45 minutes ago.

60. Moreover, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny. DEFENDANTS failed to inform the Kings County District Attorney's Office that Mr. Elsayed passed all coordination tests at the IDTU.

61. If the KCDA had been informed of this information they would not have commenced this prosecution. As evidence of this, the KCDA dismissed the counts on their own motion because ultimately, they could not prove beyond a reasonable doubt.

62. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

63. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**SIXTH CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

64. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

65. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

66. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**SEVENTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

67. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

68. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

DAMAGES

69. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

70. This action seeks damages from on or prior to May 27, 2017 through the present.

71. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

72. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

73. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
November 15, 2019

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
ADAM ELSAYED
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff ADAM ELSAYED. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
November 15, 2019



MASAI I. LORD
Counsel for Plaintiff